



Appeal Decision

Site visit made on 30 July 2026

by **C Butcher BSc MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 8th September 2026

Appeal Ref: 6005119

Galowras Farm, St Ewe, St Austell, Cornwall, PL26 6EW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs P Whitelaw against the decision of Cornwall Council.
 - The application Ref is PA25/00620.
 - The development proposed is the redesign of the dwelling permitted under extant planning permission referenced PA22/08946.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. An updated version of the National Planning Policy Framework (the Framework) was published on 17th August 2026. In the interests of fairness, I provided the main parties with an opportunity to provide comments on the new Framework as part of the appeal process. I have taken account of those comments when making my decision.

Main Issue

3. Based on the Council's decision notice, the main issue is whether the proposed development would be in a suitable location, taking account of the Council's spatial strategy and the effect of the proposal on the character and appearance of the area, including the scenic beauty of the Cornwall National Landscape.

Reasons

4. The appeal site forms part of the open countryside and is therefore subject to the provisions of Policy 7 of the Cornwall Local Plan Strategic Policies 2010 – 2030 (the LP).
5. Policy 7 sets out the circumstances in which housing in the countryside could be acceptable. Part 1 states that replacement dwellings may be appropriate. In this instance, the site benefits from an extant planning permission to construct a small one and a half storey, two bedroom dwelling¹. While permission has been implemented, it is apparent that the dwelling has not been constructed. The proposal does not technically therefore constitute a replacement dwelling.
6. However, even if one were to consider this matter further, the policy clearly requires that a replacement dwelling be broadly comparable in size, scale and bulk

¹ Council ref: PA22/08946

to the home being replaced. In this instance, the proposal would clearly be much larger than the permitted scheme, both in terms of floorspace and overall mass, and therefore it would inevitably fail against this requirement.

7. The final aspect of LP Policy 7(1) is to require new homes to be of an appropriate character for their location. This requirement is also replicated within other design related policies within the LP. In this instance, the appeal site is located in a highly rural area which is predominantly characterised by a gently rolling landscape which contains a scattering of buildings that are generally formed of traditional materials, including stone or rendered walls and slate roofs.
8. The proposal before me would make significant use of metal within the roof and for part of the cladding, while aluminium would be utilised for the windows and roof lights. There would also be extensive areas of glazing, particularly within the southern elevation, and sliding shutter panels. In essence, despite the use of stone and wood for part of the exterior, it is abundantly clear from the approved plans that the proposed dwelling would have a highly modern appearance.
9. While such designs are not harmful in all circumstances, it is obvious that the appearance of the dwelling in this instance would be completely at odds with the predominant character of the rural surroundings. Indeed, its appearance would be quite different to rural barns and the like where use of metal as an external material is common. It would therefore be seen as being incongruous and highly out of place, and as such, it would therefore inevitably detract from the appearance of the area to a significant extent.
10. The appeal site is situated at the corner of a lane in a highly visible location. It is also apparent that there is a public right of way close to the site. As a result, the described harm would be readily apparent from public vantage points.
11. It is also notable that the site forms part of the Cornwall National Landscape (the NL). Policy N4 of the Framework states that substantial weight should be placed on the importance of conserving and enhancing the natural beauty of such areas. Furthermore, the Levelling Up and Regeneration Act 2023 requires decision makers to actively seek to further the statutory purposes of NL's. Given the harm to character and appearance that I have already described, it is inevitable that I must also conclude that the proposal would also harm the scenic beauty of the NL. The fact that the site is close to the edge of the boundary of the NL does not reduce this harm in any meaningful way.
12. In contrast, while the previously permitted dwelling would also contain floor to ceiling glazing, it would have a much more subtle appearance overall, including by having a less modern design and by being more sympathetic to the rural character of the area. In particular, the exterior of the approved dwelling would be predominantly formed of timber, while there would also be a slate roof. Moreover, the much larger size of the proposed dwelling would mean that it would be a more obvious and intrusive feature during the hours of darkness than the permitted scheme, despite the reduced glazing on the western elevation. The proposed sliding shutters would mitigate this impact to some degree but not sufficiently to avoid resulting in additional harm.
13. As such, whether one is assessing the proposed development before me in isolation, or within the context of the fallback position, it would lead to an unacceptable level of harm. I do acknowledge that the permitted scheme would

lead to domestic paraphernalia, such as patio furniture, being more visible from the lane compared to the proposed scheme. In addition, the permitted scheme includes the provision of a septic tank in an adjacent field. However, these aspects are heavily outweighed by other considerations when comparing the two designs overall.

14. In conclusion, the proposal would not be in a suitable location, taking account of development plan policies and its effect on character and appearance, including the scenic beauty of the NL. It would therefore conflict with LP Policies 2, 7, 12 and 23 as well as Policy C1(7) of the Climate Emergency Development Plan Document. Taken together, the relevant aspects of these policies seek to ensure that new housing is built in sustainable locations and that it is well designed and conserves character and appearance. There would also be conflict with the aspects of the Cornwall Design Guide (2021) which also seek development proposals to be well designed.

Other Matters

15. The Council's second reason for refusal sets out that the proposal has not been secured as self build and that the statutory requirements for biodiversity net gain therefore apply. I note that the appellant has now completed the Council's self build pro-forma. Therefore, while the Council has noted that the description of development would also need to be updated to include reference to self build, their appeal statement seems to suggest that the completion of the relevant pro-forma means that the issue is not a matter of dispute between the parties.
16. I have some concerns that the pro-forma is not, in itself, sufficient to secure the proposed dwelling as self build. However, it is likely that this matter could have been resolved had I otherwise been minded to allow the appeal. The issue is therefore not a determinative feature of my decision.
17. The site falls within the zone of influence of the Fal and Helford Special Area of Conservation. A financial contribution has been secured to mitigate the impacts of the proposal upon the SAC. However, as I am dismissing the appeal for other reasons, an appropriate assessment is not required in this instance.
18. The appellant has sought to draw my attention to several other appeal decisions. Some of these relate to the way in which the proposal could be considered in relation to paragraph 11(d) of the previous version of the Framework. Clearly such arguments are no longer of relevance, and I have instead given careful consideration to the comments provided in relation to the updated Framework. A further appeal decision was cited in relation to the impact of development on the NL². However, the Inspector in that appeal noted that development must be sympathetic and well designed. I have set out why that would not be the case in relation to the scheme before me.

Planning Balance and Conclusion

19. The proposed development would result in harm in relation to its location and its effect on character and appearance, including the scenic beauty of the NL. In this instance the harm would be significant and enduring. The proposal would therefore conflict with the development plan when considered as a whole. The provision of a

² Appeal ref: APP/D0840/W/20/3261477

single self build dwelling would add to local housing stock and would provide economic benefits, both during the construction phase and post occupation. Other benefits, when compared to the fallback position, include greater sustainability features, an accessible layout, work from home space and the provision of a sewerage treatment plant. However, given the small scale nature of development, the benefits would only be limited, even when considered in combination. As such, the harm substantially outweighs the benefits in this case.

20. Policy S5 of the Framework sets out various principles in relation to development outside of settlements. Part (c) of the policy allows for the replacement of an existing building. Even if this clause were considered to be activated in this instance, the proposal would not conform with it on the basis that the proposed dwelling would clearly be disproportionately larger than the previously permitted dwelling which has not yet been built.
21. It is noted that the Council cannot currently demonstrate a five year supply of sites. As such, Policy S5(j)(i) of the Framework must be considered. However, in such circumstances, the policy sets out that it applies to development schemes that would be physically well related to an existing settlement. Given the location of the appeal site within the open countryside, that clearly would not be the case here.
22. Accordingly, I find that there are no material considerations, either individually or in combination, that outweigh the identified harm and associated development plan conflict. The appeal is therefore dismissed.

C Butcher

INSPECTOR